

2 & 3 GEO. 6. *Saint Nicholas Millbrook* **Ch. xxv.**
(*Southampton*) Church (Sale) Act, 1939.



CHAPTER xxv.

An Act to provide for the pulling down of the Church of Saint Nicholas Millbrook in the county borough of Southampton for the sale of the same and the site and churchyard thereof and the use of such site and churchyard for building or otherwise and for other purposes.

[25th May 1939.]

WHEREAS by an Act passed in the thirty-seventh year of the reign of King George the Third intituled "An Act for taking down and rebuilding the parish church of Milbrooke in the county of Southampton and for enlarging the churchyard of the said parish" (hereinafter called "the Act of 1797") which recited (inter alia) that the said parish church (hereinafter called "the old church") was a very ancient structure and in a very decayed and ruinous state and condition and not large enough for the parishioners to assemble therein to hear divine service and that it was necessary for the same to be taken down and rebuilt and also that the then churchyard thereof (hereinafter called "the churchyard") was too small a body of trustees (hereinafter called "the former trustees") consisting of the rector curate and churchwardens of the said parish for the time being and of other persons therein mentioned was constituted for the purposes (inter alia) of the taking down of the old church the acquisition of certain lands the erection

37 Geo. 3.
c. 55.

Ch. xxv. *Saint Nicholas Millbrook* 2 & 3 GEO. 6.
(*Southampton*) Church (Sale) Act, 1939.

of an intended new church and the utilisation of so much of the site of the old church and the churchyard and of the lands so acquired as was not utilised as the site of the intended new church as the churchyard of such new church and otherwise for the purpose of carrying the said Act into execution with power to raise money by voluntary subscriptions and otherwise for the said purposes :

And whereas although certain repairs and alterations to the old church were from time to time effected by the former trustees the said lands were not acquired and the said intended new church was not erected and for many years past the former trustees have ceased to exercise any of their functions under the said Act :

And whereas a new church now known as the church of the Holy Trinity Millbrook (hereinafter called "Holy Trinity Church") was in or about the year eighteen hundred and seventy-three erected in another part of the said parish and was consecrated on the twenty-sixth day of May eighteen hundred and seventy-four :

8 & 9 Vict.
c. 70.
19 & 20 Vict.
c. 55.

And whereas by an instrument dated the twenty-fifth day of June eighteen hundred and seventy-four duly made in pursuance of the Church Building Act 1845 and the Church Building Commissioners (Transfer of Powers) Act 1856 under the seal of the Ecclesiastical Commissioners and the hands and seals of the then bishop of the diocese of Winchester and of the then rector or incumbent of the old church and with the consents of the said bishop as such bishop and also as the patron in right of his see of the rectory of the parish of Millbrook and of the incumbent of the said parish it was declared that as from the date of the said instrument Holy Trinity Church should be the parish church of the said parish of Millbrook in lieu of the old church as fully in all respects as if Holy Trinity Church so thereby substituted had been originally the parish church of the said parish and that all the endowments emoluments and rights of or belonging to the old church or to the rector or incumbent thereof should be transferred to Holy Trinity Church and to the rector or incumbent thereof and his successors for ever :

And whereas the old church was subsequently used for divine worship from time to time but was finally closed for all purposes on the twenty-seventh day of December nineteen hundred and twenty in accordance with a resolution of the parochial church council of the said parish passed in view of the then ruinous state of the same and the prohibitive cost of necessary repairs and the same and the churchyard is now in a ruinous and derelict condition :

And whereas the former ecclesiastical parish of Millbrook has been sub-divided into the four present ecclesiastical parishes of Millbrook Shirley Freemantle and Saint Marks :

And whereas the population of the present ecclesiastical parish of Millbrook part of which (including the part thereof in which the old church and the churchyard is situate) is now within the county borough of Southampton has largely increased in recent years and much urban development has taken place therein and in the neighbourhood thereof but owing to the said sub-division of the former ecclesiastical parish the directions and manner in which such development has taken place and the erection and intended erection of other churches in the neighbourhood neither the repair of the old church nor the erection of a new church upon or near to the site thereof or to the churchyard thereof is expedient :

And whereas the vaults under the old church are closed and no burials therein or in the churchyard have taken place for many years :

And whereas the mayor aldermen and burgesses of the borough of Southampton (hereinafter called "the purchasers") are desirous of acquiring the site of the old church and the churchyard thereof and of using part of the same for the purpose of the widening of Millbrook Road (upon which the said site abuts) on the south side thereof and of using or disposing of the remainder thereof for the erection of buildings or other purposes :

And whereas it is expedient that the provisions contained in this Act with respect to the pulling down of the old church and the disposal of the materials thereof should be enacted :

Ch. xxv. *Saint Nicholas Millbrook* 2 & 3 GEO. 6.
(*Southampton*) *Church (Sale) Act, 1939.*

And whereas it is expedient for the purposes aforesaid that trustees should be appointed with power to sell the site of the said church and the churchyard to the purchasers subject to the conditions specified in this Act:

And whereas the Right Reverend Cyril Forster Garbett Lord Bishop of Winchester in whose diocese all the ecclesiastical parishes formerly constituting the former ecclesiastical parish of Millbrook are situate and as patron of Holy Trinity Church in right of his see has consented to the provisions of this Act:

And whereas the Reverend James Lyne Beaumont James the present incumbent of Holy Trinity Church has with the consent as aforesaid of the said patron consented to the provisions of this Act:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Saint Nicholas Millbrook (Southampton) Church (Sale) Act 1939.

**Interpre-
tation.**

2.—(1) In this Act the expression—

“The Act of 1797” means an Act passed in the thirty-seventh year of the reign of King George the Third intituled “An Act for taking down and rebuilding the parish church of Milbrooke in the county of Southampton and for enlarging the churchyard of the said parish”;

“The former trustees” means the trustees constituted by or under the Act of 1797;

“The old church” means the church of Saint Nicholas Millbrook in the county borough of Southampton;

2 & 3 GEO. 6. *Saint Nicholas Millbrook* **Ch. xxv.**
 (Southampton) Church (Sale) Act, 1939.

- “ The churchyard ” means the area of land in the county borough of Southampton containing (exclusive of the site of the old church) one thousand eight hundred square yards or thereabouts and being the ground annexed or belonging to the old church which was formerly used or appropriated for use for burials;
- “ Holy Trinity Church ” means the church of the Holy Trinity Millbrook;
- “ The diocese ” means the diocese of Winchester;
- “ The bishop ” means the lord bishop for the time being of the diocese;
- “ The Trustees ” means the Trustees constituted by or under this Act;
- “ The parochial church council ” means the parochial church council of the ecclesiastical parish of Holy Trinity Millbrook constituted under the Parochial Church Councils (Powers) Measure 1921 and the Representation of the Laity Measure 1929;
- “ The registrar ” means the registrar of the diocese;
- “ The scheduled land ” means the land consisting of the site of the old church and the churchyard described in the schedule to this Act and coloured pink on the plan signed in triplicate by Colonel Douglas Clifton Brown the chairman of the committee of the House of Commons to whom the Bill for this Act was referred of which plan one copy has been deposited in the Committee and Private Bill Office of the House of Commons another copy has been deposited in the Parliament Office House of Lords and another copy has been deposited with the registrar;
- “ The purchasers ” means the mayor aldermen and burgesses of the borough of Southampton and includes (where the context permits) their successors in title as owners of the scheduled land.

Ch. xxv. *Saint Nicholas Millbrook* 2 & 3 GEO. 6.
(*Southampton*) Church (Sale) Act, 1939.

(2) If there be any discrepancy between the description of the scheduled land which is contained in the schedule to this Act and the plan referred to in this section the said plan shall prevail.

Trustees for
purposes of
Act.

3.—(1) The following persons (that is to say):—

The Right Reverend Arthur Baillie Lumsdaine
Karney Lord Bishop Suffragan of
Southampton;

The Venerable Edmund Robert Morgan
Archdeacon of Winchester;

The Reverend James Lyne Beaumont James;
Colin McCarraher; and

Horace Aubrey Hammond;

shall be the Trustees for the execution of the powers and duties conferred and imposed on them by this Act and by the name and style of "the Trustees of Saint Nicholas Church Millbrook."

(2) The Trustees shall fill any vacancy occurring by death resignation or otherwise among the Trustees other than the said Bishop Suffragan of Southampton by the appointment of a fit lay person or person in holy orders according as the vacancy occurs among the lay Trustees or among the Trustees in holy orders but the Trustees may at all times and notwithstanding the existence of any vacancy or vacancies in their number exercise all or any of the powers of this Act unless reduced below three in which case they shall not exercise any of the powers of this Act except that of appointing a new Trustee.

(3) The Trustees shall be incorporated and shall have an official seal and shall by standing order or byelaw provide for its custody and use and any deed to which the Trustees are parties shall be well and sufficiently executed on behalf of the Trustees if the seal be affixed thereto in the presence of two Trustees testified by their signatures.

Meetings
and pro-
ceedings of
Trustees.

4.—(1) Three Trustees must be personally present to constitute a meeting of the Trustees for the transaction of business.

2 & 3 GEO. 6. *Saint Nicholas Millbrook* Ch. xxv.
(*Southampton*) Church (Sale) Act, 1939.

(2) At their first meeting after the passing of this Act and at such time as they may determine in every subsequent year the Trustees shall appoint one of their number to be chairman and another to be vice-chairman for the period of twelve months from the date of the meeting or such other period as they may determine.

(3) The chairman shall preside at all meetings of the Trustees at which he is present.

(4) If at any meeting of the Trustees the chairman be not present the vice-chairman shall take the chair but if there be no vice-chairman or if the vice-chairman be not then present the Trustees then present shall choose one of their number to take the chair at that meeting.

(5) The chairman or any three Trustees may at any time summon a meeting of the Trustees.

(6) Questions arising at a meeting of the Trustees shall be decided by a majority of votes and in case of any equality of votes the chairman shall have a second or casting vote.

(7) Subject as aforesaid the Trustees may meet together for the dispatch of business adjourn and otherwise regulate the proceedings of the Trustees as the Trustees may from time to time think fit and may make such standing orders or byelaws as they may deem necessary for the purpose.

5. No Trustee appointed under this Act shall be disqualified by reason of his being such a Trustee from entering into any contract or agreement with or from purchasing or acquiring any lands or property or any interest therein from the Trustees Provided always that no Trustee shall vote at any meeting of the Trustees on any question affecting any contract agreement or purchase in which he is interested or concerned (otherwise than as a Trustee under this Act) and if he does so vote his vote shall not be counted.

Office of
Trustee not
to disqualify
in certain
cases.

6. From and after the passing of this Act—

Powers of
sale.

(a) the old church and the site and materials thereof and the churchyard shall be respectively subject to absolute powers of

Ch. xxv. *Saint Nicholas Millbrook* 2 & 3 GEO. 6.
(*Southampton*) Church (Sale) Act, 1939.

sale to be exercised by the Trustees as in this Act provided; and

- (b) the Trustees shall until the sale of the scheduled land as hereinafter mentioned have all such rights of entry and control over the old church and the churchyard as if they were the owners thereof.

Sale of
scheduled
land.
47 & 48 Vict.
c. 72.
50 & 51 Vict.
c. 32.
6 Edw. 7.
c. 25.

7.—(1) Notwithstanding anything contained in the Act of 1797 the Disused Burial Grounds Act 1884 the Open Spaces Act 1887 the Open Spaces Act 1906 or in any other enactment but subject to the provisions of this Act the Trustees may and shall transfer to the purchasers and the purchasers may and shall purchase the scheduled land.

(2) The price to be paid by the purchasers to the Trustees in respect of the said sale and purchase shall be the sum of one thousand five hundred pounds.

(3) On the fourteenth day after the day on which the pulling down of the old church and the removal from the old church or any vault therein and from the scheduled land pursuant to this Act of all human remains monuments tombstones and other memorials is completed (which completion of such pulling down and removal shall be evidenced by a certificate in writing to be given by the Trustees to the purchasers and to the registrar forthwith upon such completion) the scheduled land shall by virtue of this Act and without any conveyance be transferred to and vested in the purchasers for an estate in fee simple in possession free from incumbrances and the price specified in subsection (2) of this section shall thereupon be paid by the purchasers to the Trustees and if for any reason (other than wilful default on the part of the Trustees) the said sum is not so paid the purchasers shall pay to the Trustees in addition to the said sum interest thereon at the rate of five per centum per annum calculated from the said fourteenth day until the date of actual payment.

Pulling
down of old
church
disposal of
human
remains &c.

8. The Trustees shall as soon as practicable and (unless prevented by reason of force majeure accident or any other cause beyond the control of the Trustees) within twelve months after the passing of this Act

2 & 3 GEO. 6. *Saint Nicholas Millbrook* Ch. xxv.
(*Southampton*) Church (Sale) Act, 1939.

cause the old church to be pulled down and sell the materials thereof and subject to the provisions in that behalf in this Act contained remove or cause to be removed from the old church or any vault therein and from the scheduled land the human remains interred therein and the monuments tombstones and other memorials of deceased persons now in or about the same.

9.—(1) Before proceeding to remove or cause to be removed any human remains from the old church or any vault therein or from the scheduled land the Trustees shall publish a notice for three successive days in two local newspapers circulating in the county of Southampton to the effect that it is intended to remove any such remains and such notice shall have embodied in it the substance of subsections (2) (3) (4) (5) and (6) of this section.

Provision as to removal of human remains.

(2) At any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the old church or any vault therein or in the scheduled land may give notice in writing to the Trustees of his intention to undertake the removal of such remains and thereupon he shall be at liberty without any faculty for the purpose but subject as hereinafter mentioned to any regulations made by the bishop to cause such remains to be removed to and re-interred in any consecrated burial ground or cemetery in which burials may legally take place.

(3) If any person giving notice as aforesaid shall fail to satisfy the Trustees that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the consistory court of the diocese who shall have power to make an order specifying who shall remove the remains.

(4) The expense of such removal or re-interment (not exceeding in respect of remains removed from any one vault or grave the sum of fifteen pounds) shall be defrayed by the Trustees such sum to be apportioned if necessary equally according to the number of remains in the vault or grave.

Ch. xxv. *Saint Nicholas Millbrook* 2 & 3 GEO. 6.
(*Southampton*) Church (Sale) Act, 1939.

(5) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the Trustees in respect of the remains in any vault or grave or if after such notice has been given the persons giving the same shall fail to comply with the provisions of this section and with any regulation of the bishop the Trustees may without any faculty for that purpose remove the remains of the deceased person and cause them to be interred in such other consecrated burial ground or cemetery in which burials may legally take place as the Trustees think suitable for the purpose subject to the consent of the bishop.

(6) All monuments and tombstones relating to the remains of any deceased person removed under this Act shall at the expense of the Trustees be removed and re-erected at such place within the county of Southampton as the bishop may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing any such application on the application of the Trustees and the Trustees shall cause to be made a record of such monuments and tombstones and of their situation when re-erected showing the particulars respecting each monument and tombstone as a separate entry and such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

(7) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the county borough of Southampton.

Power to use
scheduled
land for
building
and other
purposes.

10. When the scheduled land shall have been vested in the purchasers—

(a) the scheduled land shall be freed and discharged from all trusts uses obligations disabilities and restrictions which may affect the same by reason of part thereof being the site of the old church and part thereof being a disused burial ground and from all other trusts uses obligations disabilities and restrictions whatsoever heretofore attaching thereto under ecclesiastical law or otherwise as the site of the old church or the churchyard and

2 & 3 GEO. 6. *Saint Nicholas Millbrook* Ch. xxv.
(*Southampton*) Church (Sale) Act, 1939.

from all rights and interests of the owners of any vaults in or under the old church or graves in the churchyard;

- (b) Notwithstanding anything contained in the Act of 1797 the Disused Burial Grounds Act 1884 the Open Spaces Act 1887 the Open Spaces Act 1906 or any other enactment it shall be lawful—

(i) for the purchasers to use and appropriate any part of the scheduled land for the purposes of the widening of Millbrook Road and to use and appropriate the whole or any part of the scheduled land for the purpose of any of their functions; and

(ii) for the purchasers and their successors in title owners for the time being of the scheduled land and persons claiming through or under them at any time thereafter to erect or procure the erection of buildings on so much of the scheduled land as shall not be used and appropriated by the purchasers for the purposes of the widening of Millbrook Road on the south side thereof and otherwise to deal with and dispose of the same for building or for any other purposes in like manner as if no part thereof had ever been used or set apart as the site of a church or for the purpose of burial or had ever been or formed part of the churchyard or enclosure of the old church;

- (c) Section 16 (Power to develop lands) of the Southampton Corporation Act 1931 shall apply to the scheduled land as if such land had been acquired by the purchasers under the powers of that Act. 21 & 22 Geo. 5. c. xcix.

11. Every receipt signed by the Trustees or any three of them shall effectually discharge the purchasers or any other purchaser of any material or other property under the powers of this Act from the amount of money expressed in such receipt to have been Receipt of Trustees.

Ch. xxv. *Saint Nicholas Millbrook* 2 & 3 GEO. 6.
(*Southampton*) Church (Sale) Act, 1939.

received and from being answerable for or bound to see to the application thereof.

Application
of purchase
moneys.

12. The purchase price payable by the purchasers under the provisions of this Act and any interest payable in respect thereof and all moneys received by the Trustees for the sale to any other purchaser of any material or other property under the powers of this Act shall be applied in payment of the costs charges and expenses referred to in the section of this Act of which the marginal note is "Costs of Act" and of any other payments or expenses made or incurred by the Trustees in the execution of this Act and of the cost of the pulling down of the old church and the removal of human remains therefrom and from any vault therein and from the scheduled land and the re-interring of the same and the dealing with the monuments tombstones and other memorials in accordance with the provisions of this Act and any balance of any such moneys remaining in the hands of the Trustees shall be paid by them to the parochial church council and be applied by the said council to the following purposes and in the following manner (that is to say):—

- (1) In or towards the erection and completion of the new church intended to be called "St. Clements" upon a site at Regents Park Road in the said parish of Millbrook already at the date of the passing of this Act acquired for that purpose with all proper approaches fittings ornaments and conveniences and the consecration thereof and in payment of all costs and expenses in connection with such matters:
- (2) If and to the extent that the said balance of the purchase price or moneys shall not have been applied or allocated to the purposes mentioned in the last preceding paragraph at the expiration of ten years from the date of the passing of this Act in providing for an endowment for the repair and maintenance of Holy Trinity Church in such manner as the Trustees shall think proper.

2 & 3 GEO. 6. *Saint Nicholas Millbrook* Ch. xxv.
(*Southampton*) Church (Sale) Act, 1939.

13. The Trustees shall forthwith after the passing of this Act deliver to the registrar a printed copy of this Act which shall be registered in the registry of the diocese. Registration of Act.

14. The persons who were the former trustees immediately before the passing of this Act shall as and from the date of the passing of this Act cease to be such trustees and shall be released from all further duties obligations and liabilities as such trustees in relation to the powers of the Act of 1797. Dissolution of former trustees.

15. The Act of 1797 is hereby repealed. Repeal of Act of 1797.

16. All the costs charges and expenses preliminary and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Trustees. Costs of Act.

Ch. xxv. *Saint Nicholas Millbrook* 2 & 3 GEO. 6.
(*Southampton*) Church (Sale) Act, 1939.

The SCHEDULE referred to in the
foregoing Act.

DESCRIPTION OF LAND TO BE TRANSFERRED BY THE
TRUSTEES.

The land in the county borough of Southampton containing approximately two thousand two hundred and fifty-two square yards bounded on the north by Millbrook Road on the east by the old rectory Millbrook on the south by land belonging or reputed to belong to the Southern Railway Company and on the west by the premises in Millbrook Road known as Gordon House.

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Ch. xxv. *Saint Nicholas Millbrook* 2 & 3 GEO. 6.
(Southampton) Church (Sale) Act, 1939.

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